

25NWCV00315 25NWCV00315

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BARRERA v. JAGUAR LAND ROVER NORTH AMERICA, LLC

CASE NO.: 25NWCV00315

HEARING: 09/08/2026 @ 10:30 AM

#11

TENTATIVE ORDER

Plaintiff Oliver R. Barrera's motion to compel further responses to request for production, set two, from Defendant Jaguar Land Rover North America, LLC is MOOT.

Moving party to give notice.

Plaintiff Oliver R. Barrera (Plaintiff) moves to compel further responses from Defendant Jaguar Land Rover North America, LLC (Defendant) to requests for production of documents (RPDs), set two.

Background

On January 27, 2025, Plaintiff filed this lemon law action against Defendant and Does 1 through 10. The complaint alleges that Plaintiff purchased a certified pre-owned 2019 Land Rover Range Rover Sport which was delivered to Plaintiff with defects and nonconformities to warranty. (Complaint, ¶¶ 8-10.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; (3) violation of Song Beverly Act, section 1793.2.

Legal Standard

Under Code of Civil Procedure section 2031.260, subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).) Parties may move for a further response to requests for production of

documents where a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Meet and Confer

A motion to compel further discovery shall be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel states that it requested defense counsel's availability for a telephonic meet and confer meeting but defense counsel did not respond. (Enav Decl., ¶¶ 14-16.)

In opposition, Defendant contends that this was insufficient because "[a]t no point during this timeframe did Plaintiff's counsel provide a substantive letter outlining the legal or factual basis for challenging Defendant's objections. At no point did Plaintiff's counsel propose narrowing the scope of the overbroad nationwide requests. At no point did Plaintiff's counsel pick up the telephone to initiate a dialogue." (Opp., 4:24-27.)

While the Court agrees that meeting and conferring requires more than sending an email, here, the facts show that Defendant did not respond to Plaintiff's email requesting his availability. Neither party participated in the meet and confer process in good faith.

Discussion

Plaintiff moves to compel Defendant to provide further responses to RPDs, set two, nos. 1 and 3.

In opposition, Defendant argues that this motion is moot because it served supplemental responses to RPDs, set two, nos. 1 and 3. Defendant served the responses on August 25, 2026. (Calabia Decl., ¶ 7.)

In reply, Plaintiff contends that the motion is not moot because it does not provide responsive documents.

Based on the supplemental production to all the RPDs at issue, the arguments raised in the instant motion are moot.

Accordingly, Plaintiff's motion to compel further responses to RPDs, set two, is MOOT.